

TENTATIVE RULING

Case: Cruz v. Philip
Case No. CV2025-1574

Hearing Date: September 15, 2026 **Department Fourteen** **9:00 a.m.**

Cross-defendant Didget’s demurrer to amended cross-complaint:

Cross-complainant Mary Philip’s (“Philip”) argues that cross-defendant Darnelle Didget’s (“Didget”) demurrer was untimely filed. (Code Civ. Proc., § 430.40, subd. (a); Cal. Rules of Court, rule 3.110(d); Swanson decl., ¶¶ 3-4.) While Didget did not timely file this demurrer, Philip fails to articulate prejudice that she suffered due to the delay. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 281-282; see also *Tuck v. Thuesen* (1970) 10 Cal.App.3d 193, 196.) Therefore, the Court will address the merits of Didget’s demurrer. (*McAllister, supra*, 147 Cal.App.4th at pp. 281-282.)

Cross-defendant Didget’s demurrer to amended cross-complaint as to the first cause of action for contribution is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Didget has failed to establish that Philip’s amended cross-complaint does not state facts sufficient for this cause of action. (*General Electric Co. v. State of Cal. ex rel. Dept. Pub. Wks.* (1973) 32 Cal.App.3d 918, 925; *Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998; Philip ACC, ¶¶ 3-4.)

Didget’s demurrer to amended cross-complaint as to the second cause of action for implied indemnity is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Didget has failed to establish that Philip’s amended cross-complaint does not state facts sufficient for this cause of action. (*BFGC Architects Planners, Inc. v. Forcum/Mackey Construction, Inc.* (2004) 119 Cal.App.4th 848, 852; Philip ACC, ¶¶ 4, 7-10.) Specifically, Philip alleges that Didget owed a duty to plaintiff and breached that duty. (See *BFGC Architects Planners, Inc., supra*, 119 Cal.App.4th at p. 852 [“With limited exception, there must be some basis for tort liability against the proposed indemnitor...Generally, it is based on a duty owed to the underlying plaintiff...”].)

Didget’s demurrer to amended cross-complaint as to the third cause of action for declaratory relief is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Didget has failed to establish that Philip’s amended cross-complaint does not state facts sufficient for this cause of action. (*Allied Anesthesia Medical Group, Inc. v. Inland Empire Health Plan* (2022) 80 Cal.App.5th 794, 813; Philip ACC, ¶¶ 11-14.)

Didget shall file her answer to Philip’s amended cross-complaint by **September 28, 2026**. (Cal. Rules of Court, rule 3.1320(j).)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Cross-defendant Philip’s demurrer to first amended cross-complaint:

Cross-defendant Philip’s demurrer to cross-complainant Didget’s first amended cross-complaint is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Philip has failed to establish that Didget’s first amended cross-complaint does not state facts sufficient for this cause of action. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.*, 129 Cal. App. 4th 1228, 1259; *Trerice v. Blue Cross of Cal.* (1989) 209 Cal.App.3d 878, 883; Didget FACC, ¶¶ 33-36.) In the context of intentional infliction of emotional distress, outrageous conduct “must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Trerice, supra*, 209 Cal.App.3d at p. 883.) However, “the outrageousness of a defendant’s conduct normally presents an issue of fact to be determined by the trier of fact.” (*Ibid.*) Philip has not shown that Didget’s allegations regarding outrageous conduct are insufficient as a matter of law. (See *ibid.*) As to the other elements for this cause of action, the Court finds that Didget has alleged sufficient facts. (*Ibid.*; Didget FACC, ¶¶ 33-36.)

Philip shall file her answer to Didget’s first amended cross-complaint by **September 28, 2026**. (Cal. Rules of Court, rule 3.1320(j).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Cross-defendant Philip’s motion to strike:

The Court notes that Philip filed a supporting memorandum of points and authorities on July 8, 2026, with a corresponding proof of service. (See Cal. Rules of Court, rule 3.1113(a).)

Cross-defendant Philip’s motion to strike portions of cross-complainant Didget’s first amended cross-complaint is **DENIED**. (Code Civ. Proc., §§ 435, 436.) First, Philip has not articulated a sufficient basis to strike Didget’s entire fifth cause of action. (See Code Civ. Proc., § 436, subd. (a); cf. *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.) Second, Philip has failed to establish that Didget’s allegations are insufficient to support a claim of punitive damages. (Civ. Code, § 3294; *Hoch v. Allied-Signal, Inc.* (1994) 24 Cal.App.4th 48, 61; Didget FACC, ¶¶ 9-11, 33, 36.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Davis Medical Venture LLC v. Gary**
 Case No. CV2025-2253

Hearing Date: **September 15, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff's motion for leave to amend:

Plaintiff Davis Medical Venture LLC's motion for leave to file its first amended and supplemental complaint is **GRANTED**. (Code Civ. Proc., §§ 473, subd. (a)(1), 464; Cal. Rules of Court, rule 3.1324, 1.5.) "That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901." (*S.C. v. Doe I* (2025) 115 Cal.App.5th 365, 376.) Denial on the grounds of delay and/or lack of diligence is unwarranted if "the opposing party was not misled or prejudiced by the amendment." (*Id.*, at p. 383.) The Court finds that plaintiff's delay does not prejudice defendants Donna Gary and Dielji, Inc. because there is no trial date, plaintiff provided a reasonable explanation for the delay, and parties have ample time to further investigate these causes of action and factual allegations. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486.)

Plaintiff is **DIRECTED** to file its first amended supplemental complaint with the Court by **September 21, 2026**. (Chase decl., ¶ 10; Exhibit A.)

The notice of motion provides notice of this Court's tentative ruling system. However, the notice does not contain the required language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2023). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.